

MASTER SERVICE AGREEMENT (MSA)

MSA ID: MSA-TCS-STC-2024-001 | Date: January 01, 2024

CLIENT

Saudi Telecom Company (STC)

P.O. Box 87, Riyadh 11432
Kingdom of Saudi Arabia
CR No.: 1010036265

VENDOR / SERVICE PROVIDER

Tata Consultancy Services Limited (TCS)

TCS House, Raveline Street, Fort
Mumbai – 400001, Maharashtra, India
CIN: L22210MH1995PLC084781

1. CONTRACT SUMMARY

The following table summarizes the key attributes of this Master Service Agreement between Saudi Telecom Company (STC) and Tata Consultancy Services Limited (TCS).

MSA ID	MSA-TCS-STC-2024-001
Vendor ID	VND-TCS-2024-007
Vendor Name	Tata Consultancy Services Limited (TCS)
Client Name	Saudi Telecom Company (STC)
Start Date	January 01, 2024
End Date	December 31, 2026
Payment Terms	Net 30 days from invoice receipt
Currency	USD (United States Dollar)
Status	Active
Created By	Procurement Office, Saudi Telecom Company (STC)

2. PURPOSE & SCOPE

This Master Service Agreement ('Agreement') is entered into as of January 01, 2024 ('Effective Date') between Saudi Telecom Company (STC), a Saudi Arabian joint-stock company ('Client'), and Tata Consultancy Services Limited (TCS), an Indian public limited company ('Vendor'). This Agreement establishes the general terms and conditions under which Vendor shall provide Data Migration and related technology services to Client, including all associated Statements of Work (SOWs) executed hereunder.

The scope of services covered under this Agreement includes, but is not limited to:

- Enterprise data migration planning, assessment, and strategy

- Legacy system data extraction, transformation, and loading (ETL)
- Data quality management, validation, and reconciliation
- Migration to cloud-based or on-premise target platforms
- Post-migration support, testing, and cutover management
- Documentation, training, and knowledge transfer

All SOWs must reference this Agreement number (MSA-TCS-STC-2024-001) to be binding hereunder.

3. TERM

This Agreement shall commence on January 01, 2024 and continue through December 31, 2026, constituting an initial term of three (3) years, unless earlier terminated in accordance with Section 12. This Agreement shall automatically renew for successive one-year periods unless either party provides sixty (60) days' prior written notice of non-renewal.

4. SERVICES

TCS agrees to provide Data Migration services as described in applicable SOWs. TCS shall perform all services in a professional and workmanlike manner, consistent with industry standards, applicable data governance frameworks, and STC's internal policies and procedures. TCS shall assign qualified personnel with the appropriate expertise to execute each phase of the migration lifecycle.

5. PAYMENT TERMS

STC shall pay all undisputed invoices within Net 30 days of receipt. Late payments shall accrue interest at 1.5% per month on overdue balances. All amounts are denominated in USD unless otherwise specified in the applicable SOW. TCS shall submit invoices referencing the applicable Purchase Order (PO) number and milestone details.

Invoices shall be submitted upon completion of each project milestone as defined in the relevant SOW. STC may withhold payment only in the event of a bona fide dispute, notified in writing within ten (10) business days of invoice receipt.

6. INTELLECTUAL PROPERTY RIGHTS

6.1 Work Product Ownership

All deliverables, developments, software, documentation, and materials created specifically for STC under an SOW ('Work Product') shall be considered work-made-for-hire and shall be the exclusive property of STC upon full payment of all amounts due. TCS hereby irrevocably assigns to STC all right, title, and interest in and to the Work Product, including all associated intellectual property rights worldwide.

6.2 Background IP

TCS retains ownership of its pre-existing tools, methodologies, frameworks, and technology developed independently of this Agreement ('Background IP'). To the extent any Background IP is embedded in Work Product, TCS grants STC a non-exclusive, perpetual, irrevocable, royalty-free license to use such Background IP solely as part of the Work Product.

6.3 License Restrictions

STC shall not sublicense or assign Background IP rights beyond what is expressly permitted herein. TCS shall not use STC's data, proprietary information, or Work Product to train AI/ML models, build competing products, or for any purpose outside the scope of this Agreement.

6.4 Third-Party Components

TCS shall disclose all third-party open-source or licensed components embedded in any deliverable prior to delivery. TCS warrants that all such components are used in compliance with their respective licenses and will not impose obligations inconsistent with STC's ownership rights in the Work Product.

7. CONFIDENTIALITY AND NON-DISCLOSURE TERMS

7.1 Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by one party ('Disclosing Party') to the other ('Receiving Party'), whether in written, electronic, or oral form, that is designated as confidential or that a reasonable person would understand to be confidential in context. This includes business plans, financial data, customer records, technical specifications, network architecture, source code, and personal data of STC's subscribers and employees.

7.2 Obligations of Receiving Party

The Receiving Party agrees to:

- Hold all Confidential Information in strict confidence using no less than reasonable care;
- Not disclose Confidential Information to any third party without prior written consent of the Disclosing Party;
- Use Confidential Information solely for the purposes of performing obligations under this Agreement; and
- Limit access to employees or contractors with a need to know, who are bound by equivalent confidentiality obligations.

7.3 Exclusions

Obligations shall not apply to information that: (a) is or becomes publicly available without breach; (b) was rightfully known to the Receiving Party prior to disclosure; (c) is independently developed without use of Confidential Information; or (d) is required to be disclosed by law, with prompt written notice to the Disclosing Party.

7.4 Duration

Non-disclosure obligations survive termination of this Agreement for five (5) years. Trade secrets shall remain protected indefinitely.

7.5 Return or Destruction

Upon termination or written request, the Receiving Party shall return or securely destroy all Confidential Information and provide written certification within ten (10) business days.

8. DATA PROTECTION

TCS shall comply with all applicable data protection laws and regulations, including the Saudi Personal Data Protection Law (PDPL), GDPR where applicable, and STC's internal data governance policies. TCS shall implement appropriate technical and organizational measures to protect STC's data against

unauthorized access, loss, alteration, or destruction. TCS shall notify STC of any confirmed or suspected data breach within 72 hours of becoming aware of it.

9. INDEMNIFICATION CLAUSE

Vendor takes full responsibility for any mishap due to their product, service, or personnel.

9.1 Mutual Indemnification

Each party ('Indemnifying Party') shall indemnify, defend, and hold harmless the other party and its officers, directors, employees, and agents from and against any third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of the Indemnifying Party's material breach of this Agreement.

9.2 Vendor's Product and Service Liability

TCS acknowledges that any defect, failure, or malfunction in its data migration services or deliverables may cause harm to STC and/or third parties. Accordingly, TCS shall be solely responsible for and shall fully indemnify STC from any claims, losses, damages, fines, and expenses arising out of or related to:

- Any defect, error, or failure in TCS's data migration tools, scripts, deliverables, or services, whether latent or patent;
- Any negligent, reckless, or wrongful act or omission by TCS or its subcontractors in the performance of services;
- Any data loss, corruption, system downtime, or financial loss caused directly or indirectly by TCS's deliverables or personnel;
- Any breach of TCS's warranties, representations, or obligations under this Agreement or applicable law; and
- Any infringement of third-party intellectual property rights caused by TCS's Work Product or Background IP used hereunder.

This indemnification obligation applies regardless of whether STC was made aware of such risks and survives the termination of this Agreement.

9.3 Indemnification Procedure

The Indemnified Party shall: (a) promptly notify the Indemnifying Party in writing of any claim; (b) grant the Indemnifying Party sole control of the defense and settlement (provided no settlement imposes obligations on the Indemnified Party without its prior written consent); and (c) provide reasonable cooperation.

10. LIABILITY CLAUSE – LIMITATION OF LIABILITY

10.1 Aggregate Liability Cap – Maximum Amount Payable

Notwithstanding any other provision, each party's total aggregate liability arising out of or in connection with this Agreement — whether in contract, tort, breach of statutory duty, or otherwise — shall not exceed the total fees actually paid or payable by STC to TCS under the applicable Statement of Work during the twelve (12) calendar months immediately preceding the event giving rise to the claim ('Liability Cap'). This cap represents the maximum financial obligation either party may incur in the event of any loss, damage, or claim.

10.2 Exclusion of Consequential Damages

Except in cases of gross negligence, willful misconduct, fraud, or express indemnification obligations, neither party shall be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, including loss of profits, revenue, business opportunity, goodwill, or business interruption.

10.3 Exceptions to Limitation

The limitations of liability shall not apply to:

- Either party's confidentiality obligations under Section 7;
- TCS's indemnification obligations under Section 9.2 (Vendor Product and Service Liability);
- Claims arising from fraud, willful misconduct, or gross negligence;
- Death or personal injury caused by a party's negligence; or
- Any liability that cannot be limited or excluded by applicable law.

10.4 Mitigation of Loss

Both parties agree to take commercially reasonable steps to mitigate any losses or damages upon becoming aware of any event or circumstance that could give rise to a claim under this Agreement.

11. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Saudi Arabia. To the extent applicable, international commercial law principles may supplement Saudi law. The parties agree to submit to the exclusive jurisdiction of the competent courts of Riyadh, Kingdom of Saudi Arabia.

12. DISPUTE RESOLUTION

12.1 Good-Faith Negotiation

In the event of any dispute arising out of or relating to this Agreement, the parties shall first attempt resolution through good-faith negotiation between senior representatives within thirty (30) days of written notice detailing the nature of the dispute.

12.2 Mediation

If unresolved, either party may initiate non-binding mediation administered by the Saudi Center for Commercial Arbitration (SCCA) in Riyadh before a mutually agreed single mediator. Mediation costs shall be shared equally. Mediation shall be completed within sixty (60) days of initiation unless the parties agree in writing to extend this period.

12.3 Binding Arbitration

If mediation fails, the dispute shall be finally resolved by binding arbitration administered by the SCCA pursuant to its Arbitration Rules, with the seat of arbitration in Riyadh, before a single arbitrator. The arbitrator's award shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

12.4 Emergency and Injunctive Relief

Nothing in this Section prevents either party from seeking emergency injunctive or other equitable relief from a court of competent jurisdiction to prevent irreparable harm, including in cases of actual or threatened breach of confidentiality or intellectual property rights.

12.5 Class Action Waiver

Each party irrevocably waives any right to bring or participate in any class, collective, or representative action. All disputes shall be resolved on an individual basis only.

13. TERMINATION CLAUSE

Either party may terminate this Agreement or any SOW for cause upon thirty (30) days' written notice if the other party materially breaches this Agreement and fails to cure such breach within such period. STC may terminate any SOW for convenience upon sixty (60) days' written notice.

Upon termination, each party shall:

- Promptly return or securely destroy all Confidential Information of the other party in accordance with Section 7.5;
- Wind down all ongoing SOWs in an orderly manner consistent with their respective terms;
- Cooperate in transitioning services to STC or a designated replacement vendor; and
- Issue final invoices for all work completed through the effective date of termination.

Termination of this Agreement does not affect any accrued rights, obligations, or liabilities of either party prior to the date of termination.

AUTHORIZED SIGNATURES

By signing below, both parties confirm they have read, understood, and agree to all terms and conditions set forth in this Master Service Agreement.

CLIENT SIGNATURE Signature: _____ Name: Ahmad Al-Mansouri Title: Chief Procurement Officer Date: January 01, 2024 Official Stamp / Seal: _____	VENDOR SIGNATURE Signature: _____ Name: Rajesh Gopinathan Title: CEO & Managing Director Date: January 01, 2024 Official Stamp / Seal: _____
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